

KNOW YOUR RIGHTS

Legal Notice & Procedural Compliance Brief

1. Document Summary

Category: Police & Criminal Process

Sub-type: Arrest memo under Section 47 read with Section 43 BNSS

Assessment: This is an official arrest memo prepared under the Bharatiya Nagarik Suraksha Sanhita, 2023, documenting the arrest of an individual by police with all statutory particulars including FIR reference, arrestee details, arresting officer information, and medical examination records.

Severity of Procedural Compliance Violations

 **Serious Concerns**



■ **DEFAULT BAIL: Compliant**

No chargesheet filed yet. Default bail becomes available on 05-09-2026 if chargesheet is not filed before then — 17 days remain (60-day window; offence up to 7 years; actual production-before-magistrate date stated in document).

2. Procedural Compliance Findings

S.35(3) BNSS notice before arrest [Arnesh Kumar (2014) / Satender Kumar Antil, 2026 INSC 115]

Status: **May be Non-Compliant**

Offence punishable up to 7 years (looked up from cited section); arrest was made after the event on the basis of investigation, and no other arrest power under S.35(1) has been established. No mention of the mandatory S.35(3) notice. Per Satender Kumar Antil (2026 INSC 115): notice is the rule and arrest the exception. The arrest may be illegal if no notice was in fact served.

Threshold basis for arrest without warrant [cognizability of the offence]

Status: **Compliant**

The cited offence(s) are cognizable — police ordinarily have power to arrest without a warrant. This does not by itself confirm the specific arrest power exercised was lawful; see the notice and other checks below for that.

Written grounds of arrest furnished to arrestee [Prabir Purkayastha (2024) / Vihaan Kumar, 2025 INSC 162]

Status: **May be Non-Compliant**

The document does not mention of written grounds of arrest recorded being furnished. Per Vihaan Kumar (2025 INSC 162): failure to furnish written grounds violates Article 22(1), renders the arrest itself illegal, and is a ground for bail even where statutory bail restrictions exist — the burden is on the state to prove grounds were furnished.

Arrest memo attested by witness, family informed, medical exam [DK Basu (1997)]

Status: **Compliant**

Witness attestation, family notification, and medical exam all recorded.

Woman not arrested between sunset and sunrise [S.46(4) CrPC/ Sheela Barse]

Status: **Not Applicable**

Arrestee is not female.

Female officer involved in custody/interrogation of female arrestee [Sheela Barse (1983)]

Status: **Not Applicable**

Arrestee is not female.

Produced before magistrate within 24 hours [Art. 22(2)/S. 58 BNSS]

Status: **Non-Compliant**

Produced 55.0 hours after arrest — exceeds constitutional 24-hour limit.

Default bail on chargesheet delay [S.187 BNSS / S.167(2) CrPC]

Status: **Compliant**

No chargesheet filed yet. Default bail becomes available on 05-09-2026 if chargesheet is not filed before then — 17 days remain (60-day window; offence up to 7 years; actual production-before-magistrate date stated in document).

Overall Assessment: 3 procedural defect(s) found or suspected. Arrest may be legally vulnerable.

3. Missing or Unclear Information

- Specific facts of the alleged theft are not provided (what was stolen, from where, when, value, how it relates to Section 305)
- No supporting documents or evidence are referenced or attached to substantiate the theft allegation
- Grounds for arrest stated only as generic boilerplate ('For proper investigation of the offence') without specific factual basis
- No deadline for response or next action is stated in the memo

5. Documents to Gather

- Copy of the FIR (if registered)
- Any written notice received from police (Section 35/41A, Section 94/91)
- Identity proof
- Names and badge numbers of investigating officers, if known
- Any prior correspondence with the police station